



**MINUTES
MEETING OF THE SUNRISE CITY COMMISSION**

**Tuesday, August 10, 2021
5:00 p.m.**

1. Call to Order

Deputy Mayor Kerch called the meeting to order at 5:03 p.m.

Due to technical difficulties, Deputy Mayor Kerch restarted the meeting again at 5:16 p.m. from the beginning.

2. Roll Call

BY: City Clerk Felicia Bravo

Those found to be present were:

Mayor Michael Ryan (participating telephonically)
Deputy Mayor Neil Kerch
Assistant Deputy Mayor Jacqueline Guzman
Commissioner Mark Douglas (arrived at 5:19 p.m.)
Commissioner Joseph Scuotto

City Manager Mark Lubelski
City Attorney Kimberly Kisslan
Administrative Aide Lourdes Lawrence
City Clerk Felicia Bravo

3. Moment of Silence and Pledge of Allegiance

4. Consent Agenda

MOTION A motion to approve Items 4A through 4T made by Commissioner Douglas was seconded by Assistant Deputy Mayor Guzman.

Roll Call:

Commissioner Douglas	Yea
Commissioner Scuotto	Yea
Assistant Deputy Mayor Guzman	Yea
Deputy Mayor Kerch	Yea
Mayor Ryan	Yea

(A) Comprehensive Emergency Management Plan
C21142 Resolution No. 21-93

A Resolution of the City of Sunrise, Florida, pertaining to Emergency Management and adopting the "City of Sunrise Comprehensive Emergency Management Plan 2021;" and providing an effective date. City Manager Mark Lubelski. John K. McNamara, Fire Chief.

(B) Donation
C21176 Resolution No. 21-94

A Resolution of the City of Sunrise, Florida, approving Expenditures and Donations from the State Confiscation and Forfeiture Fund (196) in the amount of \$20,000.00 for Law Enforcement Programs and Community Events; and providing an effective date. City Manager Mark Lubelski. Anthony W. Rosa, Police Chief.

(C) Agreement
C21182 Resolution No. 21-95

A Resolution of the City of Sunrise, Florida, approving a "Letter of Agreement and Contract" between the City of Sunrise and The University of North Florida Training and Services Institute, Inc., d/b/a Institute of Police Technology and Management; and providing an effective date. City Manager Mark Lubelski. Anthony W. Rosa, Police Chief.

(D) Agreement
C21188 Resolution No. 20-78-21-B

A Resolution of the City of Sunrise, Florida, approving an amended "Memorandum of Agreement" between the School Board of Broward County, Florida and the City of Sunrise, Florida to accept the Award of the FY 2020

Cops Hiring Program Grant; and providing an effective date. City Manager Mark Lubelski. Anthony W. Rosa, Police Chief.

(E) Equipment

C21177 Resolution No. 21-96

A Resolution of the City of Sunrise, Florida, approving the purchase of MX908 Handheld High-Pressure Mass Spectrometers (HPMS™) and associated items for the Fire and Police Departments, from 908 Devices Inc., of Boston, Massachusetts, utilizing lower pricing than the GSA Contract No. GS-075-100GA; and providing an effective date. City Manager Mark Lubelski. John K. McNamara, Fire Chief. Anthony W. Rosa, Police Chief.

(F) Agreement

C21187 Resolution No. 21-97

A Resolution of the City of Sunrise, Florida, approving the purchase of a Long Range Acoustic Device (LRAD) Model 1000XI with associated equipment from Genasys Inc., utilizing lower pricing than the GSA Contract No. GS-07F-5802P; and providing an effective date. City Manager Mark Lubelski. Anthony W. Rosa, Police Chief.

(G) Amendment

C21180 Resolution No. 18-26-21-A

Resolution of the City of Sunrise, Florida, approving a "First Amendment to Agreement between City of Sunrise and Sawgrass Youth Sports Sunrise, Inc. for Youth Tackle Football and Youth Tackle Football Cheerleading Services;" and providing an effective date. City Manager Mark Lubelski. Kevin Pickard, Leisure Services Director.

(H) Agreement

C21171 Resolution No. 21-98

A Resolution of the City of Sunrise, Florida, approving an "Interlocal Agreement between Broward County and City of Sunrise for Cost Share Support of a Water Conservation Incentives Program;" and providing an effective date. City Manager Mark Lubelski. Timothy Welch, Utilities Director.

(I) Services

C21183 Resolution No. 21-99

A Resolution of the City of Sunrise, Florida, to award bid no. 21-26- 05-CM to Southland Controls, Inc. for the purchase of Lime Slaker Repair Services; and

providing an effective date. City Manager Mark Lubelski. Timothy Welch, Utilities Director.

(J) Agreement

C21173 Resolution No. 21-100

A Resolution of the City of Sunrise, Florida, to award bid no. 21-19-03-CM to One Source Restoration and Building Service Inc. for the Sawgrass Water Treatment Plant Mechanical/Chemical and Process Building Concrete Repairs Project; and providing an effective date. City Manager Mark Lubelski. Timothy Welch, Utilities Director.

(K) Agreement

C21056 Resolution No. 21-44-21-B

A Resolution of the City of Sunrise, Florida, approving a "Project Agreement between the City of Sunrise and Brown and Caldwell (Corporation) for Project Agreement No. 21-006-BC Sawgrass WWTP Train a secondary treatment construction contract administration services;" and providing an effective date. City Manager Mark Lubelski. Timothy Welch, Utilities Director.

(L) Agreement

C21181 Resolution No. 21-46-21-C

A Resolution of the City of Sunrise, Florida, approving the "Project Agreement between the City of Sunrise and Hazen and Sawyer, P.C. for Project Agreement No. 21-009-HS Sawgrass WWTP – DAF Thickening Process Improvements Design and Bidding Services;" and providing an effective date. City Manager Mark Lubelski. Timothy Welch, Utilities Director.

(M) Services

C21184 Resolution No. 21-101

A Resolution of the City of Sunrise, Florida, approving a "Piggyback Agreement between the City of Sunrise and Public Safety Supply, LLC" for the Purchase and Installation of Municipal Vehicle Equipment, on an as-needed basis, utilizing the City of Miami Bid No. 1301386; and providing an effective date. City Manager Mark Lubelski. Timothy Welch, Utilities Director.

(N) Vehicle

C21179 Resolution No. 21-102

A Resolution of the City of Sunrise, Florida, approving the purchase of one (replacement) Ford Police Interceptor Utility AWD 3.3l V6 (vehicle) from Alan Jay Automotive Management, Inc. d/b/a Alan Jay Fleet Sales, utilizing

Sourcewell contract #2021 120716-NAF; and providing an effective date. City Manager Mark Lubelski. Timothy Welch, Utilities Director.

(O) Agreement

C21190 Resolution No. 16-2-21-B

A Resolution of the City of Sunrise, Florida, to approve the “State of Florida Department of Transportation Utility Work by Highway Contractor Agreement (at Utility Expense)” and to authorize the Utilities Director or his Designee to execute the agreement; and providing an effective date. City Manager Mark Lubelski. Timothy Welch, Utilities Director.

(P) Agreement

C21194 Resolution No. 17-161-21-A

A Resolution of the City of Sunrise, Florida, approving a “Project Agreement between the City of Sunrise and Joseph Roles and Assoc., Inc. for Sawgrass Expressway – Pat Salerno Drive FDOT Interchange Reconstruction Project;” and providing an effective date. City of Sunrise, Florida Manager Mark Lubelski. Shannon Ley, Community Development Director.

(Q) Amendment

C21175 Resolution No. 95-244-21-C

A Resolution of the City of Sunrise, Florida, providing for a revision to Ordinance No. 715-X, as amended, to the General Executive/Management Positions, the Supervisory/Professional Positions, the Executive/Management & Supervisory/Professional Pay Plan, and the Appendix “A” Executive/Management & Supervisory/Professional and Appendix “B” Salary Pay Step List; and providing for an effective date. City Manager Mark Lubelski. Stella Mesa, Human Resources Director.

(R) Agreement

C21191 Resolution No. 19-115-21-B

A Resolution of the City of Sunrise, Florida, approving a “Master Landlord’s Consent to Sublease Agreement” between and among BOF FL Sawgrass Tech Park LLC, the City of Sunrise, Florida and Dan Daley, in substantial form; and providing an effective date. City Manager Mark Lubelski.

(S) Grants

C21193 Resolution No. 21-103

A Resolution of the City of Sunrise, Florida, accepting the award of the “U.S. Department of the Treasury Coronavirus State Fiscal Recovery Fund and

agreeing to the “U.S. Department of the Treasury Coronavirus State Fiscal Recovery Fund Award Terms and Conditions;” and providing an effective date. City Manager Mark Lubelski. Ernesto Acosta, Acting Finance and Administrative Services Director.

(T) Minutes

Approval of minutes:

CCM 6/8/21

LPA 6/8/21

CCM 6/22/21

Workshop 6/29/21

CCM 7/13/21

5. Special Items

(A) Proclamation

Proclamation proclaiming September 9, 2021 as Mental Health Awareness Day in the City of Sunrise. Mayor Michael J. Ryan.

Commissioner Douglas stated that mental health was a major issue and awareness needed to be increased.

Assistant Deputy Mayor Guzman was glad this was on the agenda. She asked Police Chief Anthony Rosa for insight as to how the Police Department was addressing mental health issues.

Police Chief Anthony Rosa came forward to discuss how his department was trying to treat crisis intervention. His goal was to have the whole department trained.

Commissioner Scuotto thought it was a great idea to have the training. Peer discussions were a good idea, but he was worried about it becoming a burden to other employees. They could become overwhelmed.

Commissioner Douglas believed that there could be issues with employees handling the information from another officer ethically or confidentially.

Mayor Ryan stated there were virtual programs or visits for employees that would model compassion and privacy. It would be another step forward.

6. City Items

(A) Appointment

C21178 Resolution No. 21-104

A Resolution of the City of Sunrise, Florida, appointing a member to the Unsafe Structures Board; and providing an effective date. City Manager Mark Lubelski. Felicia M. Bravo, City Clerk.

MOTION A motion to appoint Maritza Wellington to the property manager discipline made by Commissioner Scuotto was seconded by Commissioner Douglas.

Roll Call:

Commissioner Douglas	Yea
Commissioner Scuotto	Yea
Assistant Deputy Mayor Guzman	Yea
Deputy Mayor Kerch	Yea
Mayor Ryan	Yea

7. Open Discussion

Paula Crisanti approached the City Commission to discuss erecting a wall on Nob Hill Road, because she was concerned cars would careen into the backyards. She appreciated the assistance from the City and she understood the cost. She believed there was a solution. She suggested a guardrail, large trees or both. She was worried a car would go through the fence.

Assistant Deputy Mayor Guzman asked City Manager Mark Lubelski to discuss the issue.

Deputy Mayor Kerch stated there could be utility issues.

City Manager Mark Lubelski gave a background about the placement of a wall at that location. Utilities would have to be relocated and the cost would exceed \$2 million. He recommended a guardrail with landscaping. The City reached out to the Welleby Association, which supported the installation.

Commissioner Douglas asked if the utilities would impact the planting of trees.

City Manager Mark Lubelski was confident that the City could be some landscaping, but could not commit to the size and scope at this point.

Commissioner Douglas asked if large trees could be placed in the area.

City Manager Mark Lubelski replied that they needed to look at the setback from the roadway. Palm trees may be the solution. The primary purpose of the landscaping would be beautification.

Commissioner Scuotto stated this was done in Welleby and near SAC Park. He would want something nice. This would be on the swale. The rooting would be handled by staff. The guardrail would be the protection. Hedges were a problem because of removal and irrigation issues.

Ms. Crisanti thought that it was awkward for the residents. She appreciated everything that was being done.

Deputy Mayor Kerch asked for a timeline for the installation.

City Manager Mark Lubelski stated that they would have the design done in-house. A contract for guardrails was already in place.

Deputy Mayor Kerch called on Jonathan Salas, who did not come forward to speak in person or over the phone.

Brice Goldberg stated his house was the one that was hit by the car. He did not understand why utilities would have to be moved because they were behind the fence.

City Manager Mark Lubelski replied that the utilities that were underground, not above-ground, were the problem.

Assistant Deputy Mayor Guzman wanted to see the wall once it was installed.

Martha Claxton approached the City Commission to discuss a financial problem with her condo association. They discovered that the association had money stolen. She wanted to know if the City could assist them. She described the problem. They needed a new board of directors. The company that took the money was still in business.

Assistant Deputy Mayor Guzman advised she received an email about this matter and worked on it with staff.

Deputy Mayor Kerch asked Police Chief Anthony Rosa to approach the Commission.

Police Chief Anthony Rosa asked if he could speak with her in the hallway, as he did not have any information on the criminal case that was filed.

Assistant Deputy Mayor Guzman asked to be kept informed of any developments.

Commissioner Douglas commented that he received calls like this all the time, but the City had limits as to what it could do. This was a private matter. If the management company stole money from them, it was a criminal matter. The police chief would look into it, but the City Commission could not get involved in operational issues or matters between private parties.

8. Commission/Mayor Reports

Assistant Deputy Mayor Guzman stated that she would like the City to conduct a fashion show to raise heart disease awareness in women in conjunction with

National Wear Red Day, which was February 4th. It could be a gala or a fundraiser to bring attention to the American Heart Association.

Commissioner Douglas asked what the City would be required to do, especially since financial allocations were made during the budget process.

Assistant Deputy Mayor Guzman replied it was a request to use the facility to host the event.

Commissioner Scuotto commented that if one charity was allowed to use the facility for a fundraiser, then others would as well.

Assistant Deputy Mayor Guzman asked what would happen if it was a City event.

City Manager Mark Lubelski stated he would have to speak with the City Attorney.

Mayor Ryan asked the City Manager's Office to provide a 40-year building inspection report. Some facilities would be brought before the Special Magistrate. Broward County was the Covid-19 hotspot. The positivity rate was high and the deaths were up again. He felt that it was ill-advised for the employees to join together in an indoor event in light of the Covid-19 surge situation. He thought another way to demonstrate appreciation may have to be considered. He asked the City Manager Mark Lubelski for his input.

City Manager Mark Lubelski stated he was going to bring this matter up this evening. There were over 200 employees that were planning to attend. He also was seeking feedback regarding masks. He understood that some employees wanted to attend, but he also had concerns regarding illness transmission.

Mayor Ryan asked if employees were required to be vaccinated or if there was going to be a mask requirement.

Commissioner Douglas did not believe the city manager had that authority. He did not think he should ask the city manager to make that decision on the spot.

Mayor Ryan also asked if a mandatory mask requirement was made for City Hall.

City Manager Mark Lubelski stated there was no mandatory mask requirement for the banquet. In City Hall, the organization has done a good job to recommend that employees wear masks. There were a few situations, but not too many.

Commissioner Scuotto asked how the employees were feeling. He asked if the employees were nervous or if people normally replied the last week.

City Manager Mark Lubelski believed there was a group of employees who would not attend due to Covid. If the City cancelled, it would lose 75% of the deposit and a cancellation fee. They had not explored postponement.

Commissioner Scuotto did not want to put 500 employees into a situation and have Covid show up in each department. The hospitals were full.

Commissioner Douglas said that the City Commission decided it would not pursue a mask mandate. He did not think the city manager would make a mask mandate without the City Commission's input. He wished it had been on agenda. He asked if he made a decision.

Mayor Ryan asked if the event should be delayed. I did not think it should move forward. They should ask if it could be postponed.

Commissioner Douglas asked about the deposit, which was \$18,000. There were places that were having events. People were eating out at restaurants. If employees wanted to show up, that was fine. The vaccine was supposed to be a panacea. He wondered at what point people were going to be allowed to exercise personal responsibility. Employees could choose to not go. He understood the fear, but it would put staff in the difficult position of asking for a vaccine card. He would not ask the City Manager to make the decision.

Commissioner Scuotto said if the city manager made the decision, it would not fall back on the Commission. People were still going to restaurants. Cases were rising. The world could not stop if everyone wanted things to get back to normal. Now it was the delta variant, it would be another next year. No one wanted to lose the deposit.

Assistant Deputy Mayor Guzman replied that those who want to attend knew the risk they were taking. Given the City's history with the Signature Grand, if the City decided to cancel, she did not see why they would be penalized. There was a way to work it out.

Commissioner Scuotto asked who he wanted to make the decision.

Mayor Ryan believed it was a decision reserved to the city manager. It was his responsibility to ensure everyone was safe. The vaccination was not a panacea. Approximately 45% of the people who had the Pfizer vaccine would get very sick and possibly die. The City had one employee in the hospital. He asked for staff to see if it could be moved to November. He did not want it to be a "spreader" event.

Commissioner Douglas said if there was going to be a decision regarding mask mandate, it should be the City Commission. If the City Commission was going to cancel the event, then it should be cancelled. He did not know where things were going to go with the vaccination efficacy, but he would not suggest that

the city manager make a decision about this on his own. He was not willing to postpone it.

Deputy Mayor Kerch would be supportive of postponing the event based on the recent data. He would prefer to err on the side of caution and try to postpone.

Mayor Ryan thought it was up to City Manager Mark Lubelski.

MOTION A motion to postpone the employee appreciation event was made by Mayor Ryan.

Separately, Mayor Ryan asked to discuss a mask mandate to be considered in City Hall.

SECOND A second of the motion was made by Commissioner Scuotto.

Commissioner Scuotto asked Assistant Deputy Mayor Guzman her opinion.

Assistant Deputy Mayor Guzman asked if City Manager Mark Lubelski felt comfortable making that decision.

City Manager Mark Lubelski asked for feedback from the City Commission because of previous direction of the City Commission.

Commissioner Scuotto asked if he would recommend postponing the event. Commissioner Scuotto said that City Manager Mark Lubelski was asking because he wanted a mask mandate in the building and the City Commission overruled him. Most people in City Hall wear a mask. He thought a lot of people were thinking about it, based on the current RSVPs. He asked if he would be uncomfortable if he postponed the event.

City Manager Mark Lubelski thought the employees were understanding.

Commissioner Scuotto reiterated his second.

Deputy Mayor Kerch opened a public hearing. No one came forward.

Deputy Mayor Kerch closed the public hearing.

Deputy Mayor Kerch repeated the motion, which was to postpone the employee appreciation dinner.

Roll Call:

Commissioner Douglas	No
Commissioner Scuotto	Yea
Assistant Deputy Mayor Guzman	No
Deputy Mayor Kerch	Yea

Mayor Ryan

Yea

Mayor Ryan believed that the City Commission recommendation should be all to wear a mask. He was prepared to discuss it tonight. He would call a special meeting if necessary.

Commissioner Scuotto believed that if the City Manager wanted to recommend that all employees wear masks as information, that was fine.

Commissioner Douglas agreed that there was a point where people had to make their own choices.

Assistant Deputy Mayor Guzman suggested asking the employees to weigh in as to whether or not they want to wear a mask.

Mayor Ryan stated that public health policy should not be based on whether people wanted to wear a mask, but whether they can be protected. That was the obligation. He understood personal responsibility. He was not in favor of reducing the mask mandate. This was not the same as last summer. He would love to go back to normal, but the situation was worse. Personal responsibility was not a public health policy. The City needed to protect its employees. It was not novel. City Manager Mark Lubelski had the authority.

MOTION Mayor Ryan made a motion for a mask mandate in City Hall.

Commissioner Douglas said that people had the choice to decide whether they would wear the mask. He did not think City Manager Mark Lubelski had the ability to make that decision. He thought it was a decision of the Commission. He did not know how the pandemic would be resolved. We did not live in an authoritarian state. He disagreed with making the decision on behalf of the public. If the vaccine was not going to work, he did not know what would. The City Commission should make the decision.

Commissioner Scuotto stated that the City Manager wanted to feel comfortable, because he and the employees work here every day. Commissioner Scuotto said that this would start the 31 cities acting separately issue again.

Commissioner Douglas asked if the City was prepared to deal with the public that was required to wear a mask.

Commissioner Scuotto thought it would make staff feel more comfortable.

Commissioner Douglas said that masks were false security. He did not think a mask protected anyone from something as small as a virus.

Commissioner Scuotto said he had the right to do whatever he wanted to do in his building. He thought that City Manager Mark Lubelski should make the decision for City Hall until a special meeting was suggested.

Mayor Ryan did not say it was unpatriotic to request a mask mandate. He requested it because the CDC, the School Board, the County Commission, and local businesses have recommended. It was difficult. If Commission members disagreed with a decision that City Manager Mark Lubelski made regarding this, he would receive grief.

Commissioner Douglas stated that it was brought up tonight to back the Commission into a corner.

Commissioner Scuotto asked Mayor Ryan to call a special meeting.

Deputy Mayor Kerch asked to comment. He was not prepared to make a mask mandate. He was in favor to attend a special meeting. He was not prepared to vote on a mask mandate tonight.

Deputy Mayor Kerch asked for a second on the motion. Hearing none, the motion failed due to lack of second.

Commissioner Scuotto added that until there was a special meeting, he left it up to the chiefs to make a decision for their building.

Commissioner Douglas commented that people have been largely wearing a mask.

9. City Manager's Report

None

10. Consent Discussion

None

11. Quasi-Judicial Consent Agenda

None

12. Public Hearings

(A) Amendment
C21148

Commission discussion and/or action re: First Reading of an Ordinance of the City of Sunrise, Florida, extending Section 2 of Ordinance No. 654, as amended, through November 16, 2021 and functioning as the Ninth Extension of Sunrise Emergency Ordinance No. 654 which declared a State of Local Emergency in the City of Sunrise, Florida and authorized the City Manager to issue Weekly Declaration(s) of the State of Emergency; providing for penalties;

providing for conflict; providing for severability; and providing for an effective date. City Manager Mark Lubelski. Kimberly A. Kisslan, City Attorney.

MOTION A motion to approve Item 12A made by Commissioner Scuotto was seconded by Assistant Deputy Mayor Guzman.

Commissioner Douglas asked how long increments were between the extensions.

City Attorney Kimberly Kisslan stated 60 days. This seemed sooner because there was not another meeting until mid-September.

Deputy Mayor Kerch opened a public hearing. No one came forward.

Deputy Mayor Kerch closed the public hearing.

Roll Call:

Commissioner Douglas	Yea
Commissioner Scuotto	Yea
Assistant Deputy Mayor Guzman	Yea
Deputy Mayor Kerch	Yea
Mayor Ryan	Yea

(B) Transfer of Property
C21162

Commission discussion and/or action re: First Reading of an Ordinance of the City of Sunrise, Florida, approving an "Agreement for Sale and Purchase" between the City of Sunrise and New Urban Sunset Strip, LLC, for City Property generally described as a portion of Tracts 25 and 26 in the Northwest One-Quarter (NW 1/4) of Section 35, Township 49, South, Range 41 East, of Florida Fruitlands Company Subdivision no. 1, as recorded in plat book 2, page 17, of the public records of Dade County, Florida, and bearing Broward County Property Appraiser Folio No. 494135010102 and located at 1577 Sunset Strip; providing for conflict; providing for severability; and providing an effective date. City Manager Mark Lubelski.

MOTION A motion to approve Item 12B made by Commissioner Douglas was seconded by Commissioner Scuotto.

City Manager Mark Lubelski stated that a developer that handled urban infill was going to develop the property with affordable housing. It would be compatible with the surrounding neighborhood. Staff evaluated numerous options and the agreement had built-in safeguards. He discussed additional provisions of the agreement including a requirement of a development agreement. It should create significant interest in the east side.

Mr. Tim Hernandez came forward to discuss their recent Broward County projects. They had a number of other projects elsewhere. They understood the infill project market and could develop something that would be a catalyst for redevelopment nearby. They were a local company. They wanted to make communities better. It would be consistent with the east Sunrise plan. Construction prices have gone up recently.

Commissioner Scuotto said that Pompano was all commercial. He asked if this was all residential.

Mr. Hernandez said it would be 80% residential and 20% commercial.

Commissioner Scuotto asked about the timeframe.

Mr. Hernandez replied they would like to start immediately, but it needed to be platted. It would take a year to complete that process. It would sell quickly. The project should be completed in three years. He had a contractor that they used for other projects. They knew the costs would rise, but they were committed to the affordable housing market.

Commissioner Douglas asked about the salary limits.

Mr. Hernandez said it was based on family size.

Commissioner Douglas wanted to know if families would be able to afford these homes.

City Manager Mark Lubelski stated that for a family of four, 80% was \$70,400. At 120%, the salary limit would be \$105,000.

Mr. Hernandez said they would sell for about \$400,000.

Commissioner Douglas asked about a mortgage on \$400,000.

Mr. Hernandez discussed the finances and the limits at length. There would be insurance, taxes and an HOA fee. It would be about \$30,000/year. The association fee would cover the common area and the landscaping around the homes. It would cost about \$200/mo. There would be no gate, but appropriate lighting.

Discussion ensued regarding deed restricted properties.

Commissioner Douglas wondered about the appraisal of the property. He could not support the project tonight.

Assistant Deputy Mayor Guzman was concerned about the affordable housing aspect of the project.

Mayor Ryan thanked Mr. Hernandez for coming this evening. He would not want to proceed if his colleagues had questions or needed more information. He agreed that the balance of deed restriction may need to be discussed.

Commissioner Scuotto explained that the circumstances surrounding how the City acquired the property. He explained that affordable housing was based on median salaries. Because the City was putting in its money, the City wanted more affordable prices for the homes. But no one could build the homes for less. He thought the payment would be about \$2,700/mo. Commissioner Scuotto stated as they talked about it, it became more confusing. He thought it would be too expensive. A home out west could cost the same and not have a deed restriction.

Mr. Hernandez said there was a cost premium for new construction. Because 90% of the homes would be deed restricted, it reduced the price. They thought that they would be about \$358,000 to \$372,000. For others it would be more, like the market units. There was a \$70,000 difference.

Commissioner Douglas gave the example of the compression of sales, due to other factors. He wanted to know how it would be enforced.

Mr. Hernandez explained that they were trying to lift the neighborhood up by injecting excitement. They had a chance to put 28 new homes in a neighborhood. It would get east Sunrise moving. More people would fix up their homes. The area has not grown in investment.

Commissioner Douglas replied that this was on the agenda previously. He was worried that people would not be able to afford the homes.

Commissioner Scuotto also thought about the problems associated with deed restrictions. This went out to bid. He wanted to know if all of the restrictions were necessary.

Discussion again ensued regarding the enforcement of the income on deed restricted property.

Mayor Ryan believed that the questions were regarding deed restrictions. He understood that there were other questions as well. But he wanted to move it forward by tabling it to the next meeting.

MOTION A motion to table to Item 12B to September 14, 2021 at 5:00 p.m. made by Commissioner Scuotto was seconded by Commissioner Douglas. All were in favor.

13. Quasi-Judicial Hearing

None

14. City Clerk's Report

None

15. City Attorney's Report

None

16. Old Business

(A) Agreement
C21186 Resolution No. 21-46-21-D

A Resolution of the City of Sunrise, Florida, approving "Project Agreement between the City of Sunrise and Hazen and Sawyer, P.C. for Project Agreement No. 21-016-HS City of Sunrise and Town of Davie Utility Consolidation Study;" and providing an effective date. City Manager Mark Lubelski. Timothy Welch, Utilities Director.

MOTION A motion to approve Item 16A made by Commissioner Scuotto was seconded by Commissioner Douglas.

City Manager Mark Lubelski explained that there was previous discussion about acquiring the Plantation utility. This would be a consolidation study to see it is feasible to acquire the utility.

Commissioner Scuotto stated this would be one of the biggest purchases the City has ever made. This would have to be maintained. Davie took a vote and wanted Sunrise to take over the system. They were examining how much they could get for the system and Sunrise was examining how much it would cost to purchase, bring up to standard and maintain. He wanted to know that it was a study that provided all of the information and that the information was correct. This would be the City purchasing the 40% that Sunrise did not have of Plantation's utility. He wanted Hazen Sawyer to do their due diligence on the study.

Commissioner Douglas shared those concerns. He would not move forward if the numbers did not make sense. There were opportunity costs and economies of scale that Sunrise had that Davie did not.

Assistant Deputy Mayor Guzman thought Sunrise needed to take care of its own City prior to helping others.

City Manager Mark Lubelski believed that there would be less costs in Phase I, but more in Phase II. The analysis needed to be thorough. The master plan work

was independent of this analysis. He knew there was a tremendous amount of work.

Mayor Ryan was concerned that an investment in the analysis would compromise the City's operations.

City Manager Mark Lubelski said that the Master Plan would be able to move forward.

Deputy Mayor Kerch stated he was supportive of the analysis.

Roll Call:

Commissioner Douglas	Yea
Commissioner Scuotto	Yea
Assistant Deputy Mayor Guzman	Yea
Deputy Mayor Kerch	Yea
Mayor Ryan	Yea

17. New Business

(A) License Plate Readers

Commission Discussion and/or Action re: Automated License Plate Readers. Commissioner Joseph A. Scuotto.

Commissioner Scuotto said each of the Commissioners met with Sawgrass Mills Mall regarding the transportation hub. He talked to the mall about security. The mall had two had license plate readers. He asked if the mall if they were interested in the City expanding that for them. Many police officers advised him that Sunrise has used Lauderhill's plate readers and Markham Park has them. It was a fixed cost. He wanted to bring it up. Lauderhill had over 200 license plate readers. He wanted to know if there were ways to mount the readers at a lower cost.

Police Chief Anthony Rosa said that Sunrise had 8 cameras. Some were on trailers, some were fixed, some were on security vehicles. There were ones at Markham Park. There were many options available to mount the readers, including on red-light camera poles. The cost depended on the program. The hardware was one cost, but the service was another. The readers were very useful. Lauderhill had the most robust program and it had solved many violent crime cases as a result of using the readers.

Commissioner Scuotto wanted to know if the Commission was interested in pursuing this. Previously, many cars were stolen from Sawgrass Mills. If the City had readers, it would have assisted.

Mayor Ryan said he would support a motion to have the Police Department move forward and look into this further.

Commissioner Douglas suggested that Police Chief Anthony Rosa get back to each of the elected officials with an analysis.

Mayor Ryan agreed.

Assistant Deputy Mayor Guzman wanted to know how much Lauderhill was paying for their program because it seemed as though the cost for each reader was between \$30,000 to \$50,000.

Police Chief Anthony Rosa said he would look into it.

Commissioner Douglas commented that he would not want them used on the red-light camera poles, because if the City wanted to stop that program, it would complicate matters.

(B) Ordinance Creating Residency Requirements for Charter Officers
C21163

Commission discussion and/or action re: First Reading of an Ordinance of the City of Sunrise, Florida, Amending Chapter 2 "Administration," Article IV "Officers and Employees," Division 1 "Generally" by creating Section 2-254 "Residency requirements for Charter Officers;" providing for conflict; providing for severability; providing for inclusion in the city code; and providing an effective date. Commissioner Mark A. Douglas.

Commissioner Douglas thought this could improve the governance and structure of the City. They have delegated their authority to Charter Officers that make decisions that impact the community. Some people emailed him in agreement.

Assistant Deputy Mayor Guzman said there were several Charter Officers that did not live in the City and they were doing a phenomenal work.

Commissioner Scuotto said that the City Clerk and the City Attorney did not do work that affected the City in a manner that would detrimental if they did not live in the City. The City Manager, Fire Chief and Police Chief probably should live in the City.

Commissioner Douglas replied that he did not want to leave anyone out, but agreed with that point.

Commissioner Scuotto believed that the City Manager, Police Chief and Fire Chief should live in the City. He would not want to apply that to the current Charter Officers. Also, it might affect people who want to move up, but could not move. Also, six months might force people to pay a premium in costs for housing.

Commissioner Douglas replied that six months was a reasonable time to buy or rent.

Mayor Ryan said this was drafted, but not for first reading. He thanked Ms. Kisslan for drafting it and spending the time researching it. He did not support this. He did not think it was an issue. There was no problem that needed a cure. He used Chief Brooks as an example. The Commission has been clear that the Charter Officers were dedicated employees. Plus, people who worked in the City for years, but did not live here would be prohibited from moving up because they did not want to uproot their lives. He would not support this measure. He never had a doubt that the Charter Officers were fully committed.

Assistant Deputy Mayor Guzman believed that having the best candidate was more important than living in the City.

Deputy Mayor Kerch agreed. It would set up issues. It could be discussed in a contract. It could weigh in the decision of choosing a Charter Officer, but he did not want to codify it. The Fire Chief, Police Chief and City Manager should live as close as possible, if not in the City.

Commissioner Douglas asked if there was an issue with it being brought forward as an ordinance.

Deputy Mayor Kerch thought that the back up was explanatory.

Mayor Ryan reaffirmed that they had the authority to raise an issue. It was a tremendous amount of work.

Deputy Mayor Kerch opened a public hearing. No one came forward.

Deputy Mayor Kerch closed the public hearing.

City Clerk Bravo advised that the item needed a motion.

MOTION A motion to approve Item 17B made by Commissioner Scuotto was seconded by Assistant Deputy Mayor Guzman.

Deputy Mayor Kerch opened a public hearing. No one came forward.

Deputy Mayor Kerch closed the public hearing.

Roll Call:

Commissioner Douglas	Yea
Commissioner Scuotto	Yea
Assistant Deputy Mayor Guzman	No
Deputy Mayor Kerch	No

Mayor Ryan

No

(C) Sports Programs

Commission Discussion and/or Action re: The City of Sunrise Sports Programs in the Leisure Services Department. Assistant Deputy Mayor Jacqueline A. Guzman.

Assistant Deputy Mayor Guzman stated she brought this forward because the coaches needed some training to be more respectful. They needed to behave appropriately and watched their language.

Commissioner Scuotto commented that sometimes the coaches were parents whose child was on a team.

Assistant Deputy Mayor Guzman replied that parents were sometimes disrespectful on the field.

Commissioner Scuotto recommended having a video or some other type of training. The parents sometimes did get carried away. Many people used to conduct camps and travel teams. He suggested conducting mini camps that could help the children to learn specific skills.

Commissioner Douglas said most parents were trying to be respectful. If it was mandatory, parents may not want to participate. He wanted to keep it amateur.

Mayor Ryan thanked Assistant Deputy Mayor Guzman for bringing this issue forward. A reexamination was always helpful. Many sports had different characteristics. He did not think the motivation of the parents would be diminished by watching a video about appropriate conduct. It was challenging for coaches to deal with parents. There were rules implemented regarding that. Most coaches had to go through some orientation and staff always made it interesting.

Assistant Deputy Mayor Guzman agreed that mini camps were a good idea. The parents would appreciate it.

Mayor Ryan agreed that everyone should have the same lecture.

Deputy Mayor Kerch if he was not the coach, there was no team. He was glad that he learned some drills from the internet, but the important thing was to have fun. He was supportive of a training video. It was good to get children to try new sports.

(D) City Manager Annual Review

Commission discussion and/or action regarding the annual review and evaluation of the City Manager. City Manager Mark Lubelski.

Commissioner Scuotto believed that he had a tremendous amount of institutional knowledge. He was frustrated that they had people and they lost them. He thought that little things should not fall through the cracks.

Commissioner Douglas commented that he was improving. Covid-19 has had an impact. It was unprecedented. Sunrise sustained the delivery of services. Alternatives were always found to still provide services. He believed information came forward in good faith. He was mostly satisfied with the transparency. He thought the contractors needed to be held to their contracts. He looked forward to working with him.

Assistant Deputy Mayor Guzman thought there was a lack of communication. She would like the comments from employees. She wants the employees to know that they are looking into their concerns. She thought his staff was responsive.

Mayor Ryan said this was a discussion with him and the community. He thanked him for his accomplishments. He thanked him for his honesty and challenging ideas on the best interest of the City.

Deputy Mayor Kerch said he has received tracking reports and communication. He has given good advice and guidance. He recruited a diverse staff. He thought his planning skills were good. His interpersonal skills were excellent. He gets along with others. He liked the push back and when he maintained his ground.

Assistant Deputy Mayor Guzman thanked him for being responsive.

Deputy Mayor Kerch asked about the merit increase.

Commissioner Douglas thought that the standard step for merit was good. All were in favor.

Deputy Mayor Kerch recessed the meeting at 9:16 p.m.

Deputy Mayor Kerch reconvened the meeting at 9:24 p.m.

(E) City Attorney Annual Review

Commission discussion and/or action regarding the annual review and evaluation of the City Attorney. Kimberly A. Kisslan, City Attorney

Commissioner Scuotto said that City Attorney Kimberly Kisslan made their job easier. For the amount of work that is accomplished in her office was amazing. She was thorough. She was direct and to the point.

Commissioner Douglas echoed Commissioner Scuotto's comments. She was one of the best municipal attorneys that he knew. He relied on her activity report. When there was a need for a response, she has been specific in providing a

detailed and correct reply. If he had doubts, he would call her. He liked that her opinions were on the conservative side and protected the City.

Assistant Deputy Mayor Guzman appreciated her experience and availability. She was so precise. She was honest.

Mayor Ryan thought that she was one of the best decisions that the City Commission made. She has had to deal with uncertainties and previous City Commission decisions. Her outline of accomplishments did not come close to describing what she did. Her choice of outside counsel was excellent. The negotiations have been successful. She was transparent. He has worked with many city attorneys and she was the best. She was honest and pushed back when necessary.

Deputy Mayor Kerch reviewed her significant activities and said that she demonstrated excellent decision-making. She was one of the smartest people working for the City. She planned and organized. She had a reputation for being the best in her field. She kept the Commission fully informed. She represented the City well.

Deputy Mayor Kerch asked for a merit increase.

Commissioner Scuotto asked to keep her increase in line with the other Charter Officers with a standard step increase. All were in favor.

(F) Police Chief Annual Review

Commission discussion and/or action regarding the annual review and evaluation of the Chief of Police. Police Chief Anthony Rosa.

Commissioner Scuotto said he has been through a lot of chiefs. Each chief has brought change, including him. He was enthusiastic. He has implemented many changes and adapted. He engaged the community. His command staff was excellent. He would like to have a report. His job not only involved Sunrise, but the cities that abutted Sunrise as well.

Commissioner Douglas commented that his community policing has proven itself. The leadership that was in place had an easy transition because it was already moving in that direction in terms of diversity and social justice. It has been a challenge with the turnovers. Judgement took experience. He was the president of the Broward County Police Chiefs' Association.

Assistant Deputy Mayor Guzman stated that if the ordinance that required him to live in Sunrise was in place, Police Chief Anthony Rosa would not be police chief. As a resident, she felt appreciated and comfortable speaking with him and the other officers. He was involved in the community. She commended him for the diversity of the department. It created a level of comfort. She has seen

what they do for training. He was responsive at any time of day. His social media presence was engaging.

Mayor Ryan complimented him on an amazing year. The policies protected the men and women of his workforce. It has been a challenge, but he has risen to it. He thanked him for his leadership on 911 commission. His peers respected him as well. Sunrise had the best police chief in the County. He took rapid action to ensure that the community knew that the police did not stand for reprehensible behavior. He helped the protesters exercise their First Amendment rights. He also had to fight crime. He was sincere and committed. He was pleased to work alongside of him.

Deputy Mayor Kerch found that he was best police chief in Florida. He had increased diversity through promotions and appointments. He was committed to the community, SALT, bike patrols, and other citizen contacts. His social media accounts were second to none. He worked well with all other staff. He thanked him for making it easy to give him a raise.

Commissioner Douglas stated that the diversity and efforts to that end were successful. Children need to see themselves in leadership roles.

Deputy Mayor Kerch asked if he would get a merit increase. He suggested standard merit increase. All were in favor.

(G) City Clerk Annual Review
Commission discussion and/or action regarding the annual review and evaluation of the City Clerk. Felicia Bravo, City Clerk.

Commissioner Scuotto advised that he recently saw City Clerk Felicia Bravo give a presentation to the Residents Leadership Academy. She provided an in-depth report as to the functions and duties of her office. She was relatable. Being with the City for 20 years, she had substantial institutional knowledge. Her office duties were quite complex. She informed the City Commission about the increase in the election costs moving forward and prepared the City Commission to ask questions of the new Supervisor of Elections when he presented in front of the Commission. He wished her continued success.

Commissioner Douglas stated that the public records report was quite informative and gave the City Commission a sense of what was going on in the City. She responded to public records requests in a timely manner, which prevented lawsuits. She designed, coordinated and distributed appreciation certificates for the board members. Her office ran smoothly. All of her staff knew their roles. He also appreciated the information provided regarding the history of Supervisor of Elections costs.

Assistant Deputy Mayor Guzman said upon her first interaction as a candidate coming in, she did not feel welcome. On her initial interaction, woman to woman, she was disappointed. She had questions and did not feel comfortable asking them. Until the time that she was a favorable candidate, then she felt

more comfortable. Now as an elected official, she always received what she requested. Assistant Deputy Mayor Guzman wanted to see a more personable atmosphere. She appreciated her professionalism.

Mayor Ryan stated that Ms. Bravo and her staff met the mission in the face of the Covid-19 pandemic. There was an industry that made money off of public records requests that were mishandled. She and her staff handled advisory board application process, a job that has only begun to be more demanding. During the pandemic, an election was held, which presented its own challenges. He agreed that providing the information regarding the financial changes from the Supervisor of Elections Office was very helpful. He stated that her office may seem antiseptic now, prior to Covid-19, it was busy with residents coming to the office. He thanked her for her work and provided a wholehearted favorable review.

Deputy Mayor Kerch stated that he reviewed the City Clerk's memorandum and annual review, as well as the many emails she sent out during the year. Her guidance was instrumental in his decision-making. She had a diverse staff, and lead a successful team. Ms. Bravo consistently recognized the accomplishments of her staff. She had a dedicated and talented staff, which helped to make her successful. She demonstrated great resilience in dealing with Covid and running complicated election. He complimented her training, planning and organizational skills. Ms. Bravo worked well with leadership team. Her interpersonal skills built respect. The City Clerk's office provided exceptional service. She works well with staff. She consistently kept the City Commission informed with emails, which gave him a thumbprint of the organization. He appreciated receiving the resolutions from other cities, and the weekly public records requests. He believed Ms. Bravo represented the City well. She commended her on keeping up the lobbyist database. He gave her a favorable review.

Deputy Mayor Kerch stated that pursuant to Ms. Bravo's contract, she already had received her step increase.

18. Adjournment

Seeing no further business, the meeting adjourned at 11:58 p.m.

Respectfully submitted by:

Felicia M. Bravo, City Clerk